

ROUDEBUSH v ROUDEBUSH

23CV46676

PLAINTIFF'S MOTION FOR ORDER APPROVING SETTLEMENT AGREEMENT

This case involves a partition of several real properties owned by Linda Roudebush as Trustee of the Linda Roudebush Trust and as an individual ("Linda") and her sister, defendant Lisa A. Roudebush (hereinafter, "Lisa").¹ The Court entered default against Lisa on September 26, 2023, and an interlocutory judgment upon a prove-up hearing was ordered for April 19, 2024. Michael Wright was appointed referee.

Now before the Court is Linda's motion to approve a settlement agreement, including a request that the Court retain jurisdiction to enforce the settlement agreement pursuant to Code of Civil Procedure ("CCP") section 664.6. At the outset the Court brings Plaintiff's attention to fact that the Notice of Motion fails to include the following mandatory language:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p m the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p m the court day preceding the hearing, no hearing will and the tentative ruling shall become the ruling of the court.

Failure to include this language in the notice may be a basis for the Court to deny the motion.

The Court has grounds to deny the Motion based on the failure to include this language. However, in the interests of justice, the Court will rule on the motion; the parties are cautioned that the local rule has been in effect since 1/1/18 and they should not expect any such leniency for any future motions.

¹ Given the Plaintiffs and the Defendant share a common last name, the Court will refer to the parties by their first names. No disrespect is intended.

Linda and Lisa are sisters who each have a 50% interest in various parcels of real property in Calaveras County. Pursuant to Settlement Agreement ("Agreement"), Linda will assume full ownership of certain properties in Calaveras County and Lisa will gain full ownership of other properties. (Agreement ¶ 1 (a)-(e)). Linda and Lisa further agree to market and sell a remaining property and to share equally in the sale proceeds. Agreement is signed and dated by both parties.

Agreement also contains the following language:

This Agreement shall be submitted to the Court for its approval. Subject to its approval, the Calaveras County Superior Court shall retain jurisdiction over this matter and this Agreement pursuant to C.C.P Section 664.6. If either party is required to ask the Court to enforce the terms of this Agreement or the terms of the injunction ordered by the Court, that party shall be entitled to reasonable attorneys' fees and expenses upon receiving a Court order to enforce the same.

Pursuant to CCP section 664.6 (a):

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

The Court finds that the parties have stipulated to settlement of the case and accordingly GRANTS Linda's Motion for Approval of Settlement Agreement. The Court will further retain jurisdiction pursuant to Code of Civil Procedure section 664.6.

The Clerk shall provide notice of this Ruling to the parties forthwith. The Court will sign the submitted proposed formal Order